Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 5 2013

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 1 of 2011 made on 28th January 2011 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 18 February 2013

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2013*.

Commencement

2. This Direction commences on the day after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Direction ceases as if it was revoked on 1 December 2018 unless earlier revoked.

Interpretation

4. Terms used in this Direction that are defined for the purposes of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Plan) have the same meanings in this Direction as they have in the Plan.

‘**Automatic baiting equipment**’ means any mechanical operation that automatically positions bait on the hooks without the need for each hook/snood to be individually clipped onto the mainline directly by hand during the setting of the gear.

All geographic coordinates contained within the schedules attached to this document are in terms of the Geocentric Datum of Australia 1994 (GDA94).

Unless otherwise stated, the lines between coordinates are geodesics.

Notes: 1. Terms defined in the *Fisheries Management Act 1991* have the same meanings in this Direction.

To whom this Direction applies

5. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

Direction not to engage in fishing

6. Fishing is not to be engaged in the following areas of the Southern and Eastern Scalefish and Shark Fishery:

(a) Fishing is not to be engaged in the area described in Schedule 1:
  (i) using gillnet methods; and
  (ii) using hook methods if fishing under the authority of a shark hook boat statutory fishing right.

(b) Fishing is not to be engaged in using automatic baiting equipment in the area described in Schedule 2.

Revocation of previous Direction

7. This Direction revokes the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 3 2013* with effect from the commencement of this Direction.

SCHEDULE 1

Shark Hook and Gillnet Deepwater Closure

The area of the Shark Hook and Gillnet Deepwater Closure is that part of the AFZ contained within and bounded by a line commencing at the point on the Adjacent Area Boundary between the States of New South Wales and Victoria, off south eastern Australia, closest to the point of latitude 37º 35' 54.5" south, longitude 150º 12' 31.8" east.

Then south easterly along that Adjacent Area Boundary to its intersection with the outer limit of the AFZ, close to the point of latitude 38º 58' 17" south, longitude 153º 46' 43" east.

Then generally southerly and westerly along the outer limit of the AFZ to its intersection, south of Australia, with the Adjacent Area Boundary between the States of South Australia and Western Australia, close to the point of latitude 35º 19' 14.9" south, longitude 129º 00' 05.2" east.

Then northerly along that Adjacent Area Boundary to a point closest to latitude 33º 20’ 47.01” south, longitude 129º 00’ 05.01” east, (Point 1).

Then generally south easterly along the geodesics sequentially connecting the following points:

2	33° 20' 32" south	129° 42' 55" east
3	33° 18' 39" south	130° 05' 17" east
4	33° 21' 16" south	130° 50' 25" east
5	33° 26' 40" south	131° 29' 28" east
6	33° 31' 45" south	131° 47' 44" east
7	33° 39' 03" south	131° 58' 05" east
8	33° 40' 36" south	132° 03' 28" east
9	33° 51' 13" south	132° 19' 50" east
10	34° 11' 01" south	132° 35' 06" east
11	34° 50' 24" south	133° 25' 24" east
12	34° 55' 55" south	133° 49' 04" east
13	34° 59' 19" south	133° 56' 19" east
14	35° 03' 43" south	134° 13' 15" east
15	35° 12' 39" south	134° 30' 12" east
16	35° 27' 21" south	134° 52' 04" east
17	35° 32' 56" south	135° 07' 13" east

18	35° 38' 33" south	135° 17' 42" east
19	35° 36' 32" south	135° 20' 35" east
20	35° 49' 31" south	135° 37' 54" east
21	35° 53' 11" south	135° 44' 15" east
22	35° 58' 57" south	135° 44' 07" east
23	36° 07' 36" south	135° 53' 26" east
24	36° 17' 17" south	136° 00' 05" east
25	36° 19' 02" south	136° 05' 09" east
26	36° 26' 03" south	136° 08' 39" east
27	36° 30' 41" south	136° 20' 11" east
28	36° 22' 49" south	136° 28' 12" east
29	36° 24' 23" south	136° 29' 23" east
30	36° 32' 00" south	136° 27' 35" east
31	36° 37' 21" south	136° 41' 15" east
32	36° 31' 45" south	136° 41' 12" east
33	36° 31' 04" south	136° 43' 30" east
34	36° 34' 38" south	136° 44' 42" east
35	36° 38' 46" south	136° 56' 52" east
36	36° 37' 21" south	137° 00' 55" east
37	36° 41' 27" south	137° 03' 14" east
38	36° 48' 13" south	137° 24' 54" east
39	36° 56' 14" south	137° 37' 31" east
40	36° 57' 09" south	137° 41' 22" east
41	37° 01' 16" south	137° 46' 33" east
42	37° 03' 49" south	137° 53' 23" east
43	37° 03' 04" south	137° 58' 31" east
44	37° 05' 45" south	138° 02' 59" east
45	37° 03' 59" south	138° 14' 33" east
46	37° 05' 24" south	138° 30' 56" east
47	37° 11' 20" south	139° 00' 12" east
48	37° 17' 44" south	139° 10' 57" east
49	37° 26' 30" south	139° 16' 49" east
50	37° 33' 45" south	139° 30' 51" east

51	38° 01' 59" south	140° 09' 07" east
52	38° 16' 37" south	140° 31' 00" east
53	38° 32' 28" south	141° 11' 05" east
54	38° 37' 33" south	141° 17' 06" east
55	38° 45' 02" south	141° 32' 58" east
56	38° 49' 13" south	142° 02' 07" east
57	38° 51' 01" south	142° 04' 29" east
58	38° 53' 45" south	142° 16' 38" east
59	38° 58' 55" south	142° 21' 54" east
60	39° 02' 36" south	142° 31' 06" east
61	39° 23' 37" south	142° 52' 43" east
62	39° 25' 42" south	142° 53' 13" east
63	39° 27' 43" south	142° 56' 39" east
64	39° 37' 46" south	143° 05' 17" east
65	39° 57' 54" south	143° 14' 22" east
66	40° 02' 25" south	143° 15' 26" east
67	40° 02' 58" south	143° 18' 16" east
68	40° 05' 58" south	143° 17' 12" east
69	40° 09' 01" south	143° 20' 25" east
70	40° 10' 40" south	143° 19' 30" east
71	40° 14' 06" south	143° 22' 14" east
72	40° 25' 12" south	143° 25' 34" east
73	40° 43' 41" south	143° 37' 42" east
74	41° 04' 49" south	144° 01' 02" east
75	41° 20' 23" south	144° 20' 42" east
76	41° 19' 44" south	144° 25' 32" east
77	41° 32' 02" south	144° 26' 01" east
78	41° 40' 15" south	144° 30' 29" east
79	41° 45' 51" south	144° 31' 26" east
80	41° 44' 07" south	144° 35' 18" east
81	41° 52' 47" south	144° 35' 01" east
82	41° 55' 24" south	144° 40' 23" east
83	42° 01' 59" south	144° 44' 33" east

84	42° 08' 08" south	144° 44' 26" east
85	42° 17' 55" south	144° 52' 55" east
86	42° 25' 27" south	144° 51' 18" east
87	42° 37' 53" south	144° 56' 34" east
88	42° 48' 32" south	144° 56' 40" east
89	42° 53' 47" south	145° 02' 18" east
90	43° 00' 14" south	145° 06' 43" east
91	43° 08' 23" south	145° 24' 16" east
92	43° 16' 38" south	145° 25' 34" east
93	43° 24' 05" south	145° 41' 22" east
94	43° 34' 57" south	145° 52' 14" east
95	43° 37' 11" south	145° 51' 36" east
96	43° 39' 29" south	145° 55' 19" east
97	43° 44' 53" south	145° 55' 28" east
98	43° 47' 05" south	146° 00' 33" east
99	43° 50' 36" south	145° 59' 52" east
100	43° 59' 43" south	146° 19' 59" east
101	44° 00' 23" south	146° 33' 43" east
102	44° 03' 04" south	146° 33' 42" east
103	44° 04' 26" south	146° 37' 32" east
104	44° 03' 02" south	146° 39' 27" east
105	44° 02' 41" south	146° 47' 40" east
106	43° 59' 08" south	146° 52' 48" east
107	44° 05' 10" south	147° 00' 02" east
108	44° 07' 58" south	147° 01' 55" east
109	44° 05' 26" south	147° 04' 37" east
110	44° 00' 07" south	147° 21' 53" east
111	44° 00' 39" south	147° 25' 16" east
112	43° 58' 27" south	147° 31' 53" east
113	43° 54' 10" south	147° 37' 34" east
114	43° 52' 26" south	147° 42' 43" east
115	43° 40' 24" south	147° 52' 18" east
116	43° 32' 31" south	147° 55' 43" east

117	43° 27' 12" south	148° 00' 49" east
118	43° 24' 44" south	148° 07' 48" east
119	43° 02' 47" south	148° 14' 04" east
120	42° 51' 41" south	148° 20' 10" east
121	42° 44' 59" south	148° 22' 01" east
122	42° 43' 11" south	148° 21' 01" east
123	42° 41' 22" south	148° 23' 55" east
124	42° 30' 20" south	148° 29' 06" east
125	42° 13' 12" south	148° 34' 44" east
126	41° 57' 16" south	148° 36' 54" east
127	41° 41' 22" south	148° 34' 02" east
128	41° 34' 11" south	148° 36' 15" east
129	41° 31' 35" south	148° 35' 25" east
130	41° 25' 26" south	148° 38' 18" east
131	41° 10' 47" south	148° 37' 37" east
132	40° 52' 35" south	148° 44' 25" east
133	40° 36' 03" south	148° 46' 60" east
134	40° 27' 30" south	148° 51' 49" east
135	40° 15' 32" south	148° 53' 00" east
136	40° 13' 48" south	148° 51' 27" east
137	40° 11' 52" south	148° 52' 35" east
138	39° 57' 24" south	148° 50' 30" east
139	39° 54' 36" south	148° 47' 54" east
140	39° 50' 50" south	148° 48' 49" east
141	39° 48' 12" south	148° 46' 60" east
142	39° 45' 18" south	148° 47' 39" east
143	39° 38' 49" south	148° 45' 39" east
144	39° 34' 21" south	148° 47' 13" east
145	39° 26' 43" south	148° 44' 15" east
146	39° 20' 31" south	148° 43' 39" east
147	39° 19' 12" south	148° 41' 42" east
148	39° 22' 03" south	148° 39' 06" east
149	39° 21' 26" south	148° 37' 03" east

150	39° 16' 15" south	148° 38' 53" east
151	39° 10' 05" south	148° 38' 18" east
152	39° 09' 23" south	148° 36' 41" east
153	39° 07' 42" south	148° 36' 54" east
154	39° 04' 24" south	148° 35' 40" east
155	39° 04' 44" south	148° 33' 14" east
156	39° 03' 37" south	148° 32' 22" east
157	39° 00' 44" south	148° 33' 31" east
158	38° 51' 49" south	148° 26' 06" east
159	38° 52' 45" south	148° 22' 16" east
160	38° 48' 20" south	148° 18' 06" east
161	38° 38' 20" south	148° 23' 55" east
162	38° 32' 04" south	148° 24' 22" east
163	38° 22' 12" south	148° 28' 44" east
164	38° 16' 07" south	148° 37' 10" east
165	38° 17' 52" south	148° 41' 35" east
166	38° 16' 10" south	148° 53' 53" east
167	38° 13' 15" south	148° 57' 48" east
168	38° 14' 01" south	149° 05' 13" east
169	38° 12' 14" south	149° 15' 06" east
170	38° 08' 19" south	149° 16' 41" east
171	38° 07' 56" south	149° 22' 30" east
172	38° 05' 07" south	149° 20' 51" east
173	38° 02' 55" south	149° 23' 03" east
174	38° 08' 57" south	149° 33' 49" east
175	38° 06' 01" south	149° 51' 38" east
176	37° 57' 11" south	150° 01' 14" east
177	37° 49' 07" south	150° 03' 13" east

Then north easterly along the geodesic to the point of commencement.

SCHEDULE 2

Automatic Longline Shallow Water Closure

The area of the Automatic Longline Shallow Water Closure is that part of the AFZ contained within and bounded by a line commencing at the intersection of the outer limit of Coastal Waters off south eastern Australia with the Adjacent Area Boundary between the States of New South Wales and Victoria close to the point of latitude 37º 31’ 40.8” south, longitude 150º 01’ 59.08” east.

Then south easterly along that Adjacent Area Boundary to its intersection with parallel of latitude 37º 34’ 54” south, close to meridian of longitude 150º 10’ 04” east’.

Then east along that parallel of latitude to its intersection with the meridian of longitude 150º 12’ 43.08” east, (Point 1). Then, initially south westerly, along the geodesics sequentially connecting the following points:

2	37° 35' 54" south	150° 12' 32" east
3	37° 49' 07" south	150° 03' 13" east
4	37° 57' 11" south	150° 01' 14" east
5	38° 06' 01" south	149° 51' 38" east
6	38° 08' 57" south	149° 33' 49" east
7	38° 02' 55" south	149° 23' 03" east
8	38° 05' 07" south	149° 20' 51" east
9	38° 07' 56" south	149° 22' 30" east
10	38° 08' 19" south	149° 16' 41" east
11	38° 12' 14" south	149° 15' 06" east
12	38° 14' 01" south	149° 05' 13" east
13	38° 13' 15" south	148° 57' 48" east
14	38° 16' 10" south	148° 53' 53" east
15	38° 17' 52" south	148° 41' 35" east
16	38° 16' 07" south	148° 37' 10" east
17	38° 22' 12" south	148° 28' 44" east
18	38° 32' 04" south	148° 24' 22" east
19	38° 38' 20" south	148° 23' 55" east
20	38° 48' 20" south	148° 18' 06" east
21	38° 52' 45" south	148° 22' 16" east
22	38° 51' 49" south	148° 26' 06" east
23	39° 00' 44" south	148° 33' 31" east

24	39° 03' 37" south	148° 32' 22" east
25	39° 04' 44" south	148° 33' 14" east
26	39° 04' 24" south	148° 35' 40" east
27	39° 07' 42" south	148° 36' 54" east
28	39° 09' 23" south	148° 36' 41" east
29	39° 10' 05" south	148° 38' 18" east
30	39° 16' 15" south	148° 38' 53" east
31	39° 21' 26" south	148° 37' 03" east
32	39° 22' 03" south	148° 39' 06" east
33	39° 19' 12" south	148° 41' 42" east
34	39° 20' 31" south	148° 43' 39" east
35	39° 26' 43" south	148° 44' 15" east
36	39° 34' 21" south	148° 47' 13" east
37	39° 38' 49" south	148° 45' 39" east
38	39° 45' 18" south	148° 47' 39" east
39	39° 48' 12" south	148° 46' 60" east
40	39° 50' 50" south	148° 48' 49" east
41	39° 54' 36" south	148° 47' 54" east
42	39° 57' 24" south	148° 50' 30" east
43	40° 11' 52" south	148° 52' 35" east
44	40° 13' 48" south	148° 51' 27" east
45	40° 15' 32" south	148° 53' 00" east
46	40° 27' 30" south	148° 51' 49" east
47	40° 36' 03" south	148° 46' 60" east
48	40° 52' 35" south	148° 44' 25" east
49	41° 10' 47" south	148° 37' 37" east
50	41° 25' 26" south	148° 38' 18" east
51	41° 31' 35" south	148° 35' 25" east
52	41° 34' 11" south	148° 36' 15" east
53	41° 41' 22" south	148° 34' 02" east
54	41° 57' 16" south	148° 36' 54" east
55	42° 13' 12" south	148° 34' 44" east
56	42° 30' 20" south	148° 29' 06" east

57	42° 41' 22" south	148° 23' 55" east
58	42° 43' 11" south	148° 21' 01" east
59	42° 44' 59" south	148° 22' 01" east
60	42° 51' 41" south	148° 20' 10" east
61	43° 02' 47" south	148° 14' 04" east
62	43° 24' 44" south	148° 07' 48" east
63	43° 27' 12" south	148° 00' 49" east
64	43° 32' 31" south	147° 55' 43" east
65	43° 40' 24" south	147° 52' 18" east
66	43° 52' 26" south	147° 42' 43" east
67	43° 54' 10" south	147° 37' 34" east
68	43° 58' 27" south	147° 31' 53" east
69	44° 00' 39" south	147° 25' 16" east
70	44° 00' 07" south	147° 21' 53" east
71	44° 05' 26" south	147° 04' 37" east
72	44° 07' 58" south	147° 01' 55" east
73	44° 05' 10" south	147° 00' 02" east
74	43° 59' 08" south	146° 52' 48" east
75	44° 02' 41" south	146° 47' 40" east
76	44° 03' 02" south	146° 39' 27" east
77	44° 04' 26" south	146° 37' 32" east
78	44° 03' 04" south	146° 33' 42" east
79	44° 00' 23" south	146° 33' 43" east
80	43° 59' 43" south	146° 19' 59" east
81	43° 50' 36" south	145° 59' 52" east
82	43° 47' 05" south	146° 00' 33" east
83	43° 44' 53" south	145° 55' 28" east
84	43° 39' 29" south	145° 55' 19" east
85	43° 37' 11" south	145° 51' 36" east
86	43° 34' 57" south	145° 52' 14" east
87	43° 24' 05" south	145° 41' 22" east
88	43° 16' 38" south	145° 25' 34" east
89	43° 08' 23" south	145° 24' 16" east

90	43° 00' 14" south	145° 06' 43" east
91	42° 53' 47" south	145° 02' 18" east
92	42° 48' 32" south	144° 56' 40" east
93	42° 37' 53" south	144° 56' 34" east
94	42° 25' 27" south	144° 51' 18" east
95	42° 17' 55" south	144° 52' 55" east
96	42° 08' 08" south	144° 44' 26" east
97	42° 01' 59" south	144° 44' 33" east
98	41° 55' 24" south	144° 40' 23" east
99	41° 52' 47" south	144° 35' 01" east
100	41° 44' 07" south	144° 35' 18" east
101	41° 45' 51" south	144° 31' 26" east
102	41° 40' 15" south	144° 30' 29" east
103	41° 32' 02" south	144° 26' 01" east
104	41° 19' 44" south	144° 25' 32" east
105	41° 20' 23" south	144° 20' 42" east
106	41° 04' 49" south	144° 01' 02" east
107	40° 43' 41" south	143° 37' 42" east
108	40° 25' 12" south	143° 25' 34" east
109	40° 14' 06" south	143° 22' 14" east
110	40° 10' 40" south	143° 19' 30" east
111	40° 09' 01" south	143° 20' 25" east
112	40° 05' 58" south	143° 17' 12" east
113	40° 02' 58" south	143° 18' 16" east
114	40° 02' 25" south	143° 15' 26" east
115	39° 57' 54" south	143° 14' 22" east
116	39° 37' 46" south	143° 05' 17" east
117	39° 27' 43" south	142° 56' 39" east
118	39° 25' 42" south	142° 53' 13" east
119	39° 23' 37" south	142° 52' 43" east
120	39° 02' 36" south	142° 31' 06" east
121	38° 58' 55" south	142° 21' 54" east
122	38° 53' 45" south	142° 16' 38" east

123	38° 51' 01" south	142° 04' 29" east
124	38° 49' 13" south	142° 02' 07" east
125	38° 45' 02" south	141° 32' 58" east
126	38° 37' 33" south	141° 17' 06" east
127	38° 32' 28" south	141° 11' 05" east
128	38° 16' 37" south	140° 31' 00" east
129	38° 01' 59" south	140° 09' 07" east
130	37° 33' 45" south	139° 30' 51" east
131	37° 26' 30" south	139° 16' 49" east
132	37° 17' 44" south	139° 10' 57" east
133	37° 11' 20" south	139° 00' 12" east
134	37° 05' 24" south	138° 30' 56" east
135	37° 03' 59" south	138° 14' 33" east
136	37° 05' 45" south	138° 02' 59" east
137	37° 03' 04" south	137° 58' 31" east
138	37° 03' 49" south	137° 53' 23" east
139	37° 01' 16" south	137° 46' 33" east
140	36° 57' 09" south	137° 41' 22" east
141	36° 56' 14" south	137° 37' 31" east
142	36° 48' 13" south	137° 24' 54" east
143	36° 41' 27" south	137° 03' 14" east
144	36° 37' 21" south	137° 00' 55" east
145	36° 38' 46" south	136° 56' 52" east
146	36° 34' 38" south	136° 44' 42" east
147	36° 31' 04" south	136° 43' 30" east
148	36° 31' 45" south	136° 41' 12" east
149	36° 37' 21" south	136° 41' 15" east
150	36° 32' 00" south	136° 27' 35" east
151	36° 24' 23" south	136° 29' 23" east
152	36° 22' 49" south	136° 28' 12" east
153	36° 30' 41" south	136° 20' 11" east
154	36° 26' 03" south	136° 08' 39" east
155	36° 19' 02" south	136° 05' 09" east

156	36° 17' 17" south	136° 00' 05" east
157	36° 07' 36" south	135° 53' 26" east
158	35° 58' 57" south	135° 44' 07" east
159	35° 53' 11" south	135° 44' 15" east
160	35° 49' 31" south	135° 37' 54" east
161	35° 36' 32" south	135° 20' 35" east
162	35° 38' 33" south	135° 17' 42" east
163	35° 32' 56" south	135° 07' 13" east
164	35° 27' 21" south	134° 52' 04" east
165	35° 12' 39" south	134° 30' 12" east
166	35° 03' 43" south	134° 13' 15" east
167	34° 59' 19" south	133° 56' 19" east
168	34° 55' 55" south	133° 49' 04" east
169	34° 50' 24" south	133° 25' 24" east
170	34° 11' 01" south	132° 35' 06" east
171	33° 51' 13" south	132° 19' 50" east
172	33° 40' 36" south	132° 03' 28" east
173	33° 39' 03" south	131° 58' 05" east
174	33° 31' 45" south	131° 47' 44" east
175	33° 26' 40" south	131° 29' 28" east
176	33° 21' 16" south	130° 50' 25" east
177	33° 18' 39" south	130° 05' 17" east
178	33° 20' 32" south	129° 42' 55" east

Then westerly along the geodesic to the point on the Adjacent Area Boundary between the States of South Australia and Western Australia closest to latitude 33º 20’ 47.01” south, longitude 129º 00’ 05.01” east.

Then north along that Adjacent Area Boundary to its intersection with the outer limit of Coastal Waters off southern Australia close to a point of latitude 31º 44’ 29.8” south, longitude 129º 00’ 05” east.

Then generally easterly along the outer limit of the Coastal Waters of the States of South Australia and Victoria back to the point of commencement.

Also included in the Automatic Longline Shallow Water Closure is the area within a circle of radius 8.1 nautical miles centred at the point of latitude 33º 09’ 51.1” south, longitude 156º 10’ 02.4” east, in the vicinity of Taupo Seamount.